IN THE SUPREME COURT OF THE STATE OF OREGON

STATE ex rel. ASHLE' PENN,

Relator,

v.

THE HONORABLE [FIRST NAME] RINI, Judge of the Circuit Court of the State of Oregon for Washington County,

Defendant.

Case No. [to be assigned]

PETITION FOR ALTERNATIVE WRIT OF MANDAMUS *(ORS 34.105 – 34.240; ORS 34.120(2))*

I. RELIEF SOUGHT

Relator seeks an alternative writ of mandamus commanding the Honorable Judge Rini of the Washington County Circuit Court, Juvenile Department, to:

1. Vacate any order or ruling conditioning Relator's access to the juvenile case file in Case No. 25JU04261 on physical appearance at the Washington County Courthouse;
2. Direct the juvenile clerk to provide Relator, upon written request and without in-person appearance, copies of the pleadings, orders, transcripts, exhibits, and audio recordings in Case No. 25JU04261, as ORS 419A.255 requires;
3. Perform every ministerial duty imposed by ORS 419A.255 with respect to Relator; and

4. Cease conditioning any statutory right on Relator's exposure to arrest in the separate criminal proceeding Relator is contesting.

II. QUESTION PRESENTED

Whether a juvenile court judge may condition a parent's statutory right of access to her child's dependency file (ORS 419A.255) on the parent's physical appearance at a courthouse where such appearance exposes her to arrest on an unrelated criminal warrant she is constitutionally contesting.

III. BRIEF ANSWER

No. Mandamus is the proper remedy where a public officer refuses to perform a ministerial duty imposed by law. ORS 34.110. ORS 419A.255 imposes a mandatory duty to make the record available to a parent whose child is the subject of the proceeding. The Court's records-access condition operates as an absolute bar, is unauthorized by statute, and imposes an unconstitutional condition on the exercise of a statutory right. *Perry v. Sindermann*, 408 U.S. 593, 597 (1972). The Court has no plain, speedy, and adequate remedy in the ordinary course of law, because the direct appeal window from the underlying orders has run — a consequence of the very records-access denial being challenged.

IV. JURISDICTION

The Oregon Supreme Court has original jurisdiction over petitions for a writ of mandamus directed to circuit court judges. ORS 34.120(2); *State ex rel. Kristof v. Fagan*, 369 Or. 261 (2022). Relator's remedy at law is inadequate because the state proceeding has continued to permanency judgment while Relator has been denied the record necessary to appeal.

V. STATEMENT OF FACTS

1. Relator AshLe' Penn is the natural mother of A.D. (DOB 06/23/2011), the subject of a dependency proceeding pending in the Washington County

Circuit Court, Juvenile Department, Case No. 25JU04261.

2. Relator received no summons and no petition prior to the September 8, 2025 shelter hearing. She has been treated by the Department as a non-party throughout. Judgments have been entered against her without service and without proper appearance.
3. To learn the pleaded allegations and prepare a response, Relator requested the case file under ORS 419A.255 and any other statute permitting her access as the child's parent.
4. Judge Rini denied the records request. Judge Rini conditioned inspection on Relator's physical appearance at the Washington County Courthouse. Judge Rini's order prevented the juvenile clerk from performing the ministerial act of providing copies.
5. Relator cannot appear physically at the Washington County Courthouse without being arrested. Relator has an active warrant in Case No. 24CR49043, a criminal proceeding she is contesting on constitutional grounds. Appearing at the courthouse means going to jail on a warrant she has never had the chance to litigate.
6. Relator learned the pleaded allegations only because ODHS Supervisor Sonya Faulkner read them aloud on a recorded call. Relator obtained the case record itself only because A.D.'s attorney provided A.D. a zip drive of the pleadings, which A.D. delivered to Relator, and Relator copied it.
7. Relator continues to seek — and continues to be denied — the file with respect to any material not on the zip drive, including audio recordings of hearings, chambers correspondence, and orders postdating the drive.

VI. STANDARD

Mandamus lies to compel a public officer to perform an act the law specifically enjoins as a duty. ORS 34.110; *Doney v. Clatsop County*, 142 Or. App. 497, 500 (1996). A duty is enjoined by law when a statute prescribes the officer's action without discretion. *Li v. State*, 338 Or. 376, 397 (2005).

VII. ARGUMENT

A. ORS 419A.255 Imposes a Ministerial Duty to Make the Record Available to a Parent

ORS 419A.255(1) requires the juvenile court to maintain a record of the case. ORS 419A.255(2) makes that record — including the "supplemental confidential file" — available to the child, the child's parent, the child's attorney, the parent's attorney, and other persons enumerated by statute. The statute imposes no in-person appearance condition. The statute imposes no fee condition preceding access. The clerk's duty to produce the record on request is ministerial. *Cf. Antoine v. Byers & Anderson, Inc.*, 508 U.S. 429, 436 (1993) (statutorily prescribed record-production duty is ministerial).

B. Judge Rini's In-Person-Appearance Condition Is Not Authorized by Statute

No provision of ORS chapter 419A or chapter 419B authorizes a judge to condition a parent's access to the case record on physical courthouse appearance. Where a court adds a condition the legislature did not, the condition is *ultra vires*. *Cf. State ex rel. Kristof v. Fagan*, 369 Or. 261, 268 (2022) (mandamus tests whether the officer added conditions beyond the statute).

C. The Condition Is an Unconstitutional Condition on a Statutory Right

Government may not condition the exercise of a statutory or constitutional right on the surrender of another constitutional right. *Perry v. Sindermann*, 408 U.S. 593, 597 (1972). Relator has a constitutional right to be free of arrest on a warrant she is constitutionally contesting. Requiring her to submit to arrest as a condition of exercising her statutory right to inspect her child's dependency file is precisely the condition *Perry* forbids.

D. Judge Rini's Order Also Obstructs the Clerk's Ministerial Duty

Judge Rini's ruling prevented the clerk from performing the ministerial act of providing copies. A judge lacks authority to command a clerk to withhold what the statute commands the clerk to produce. *See Antoine*, 508 U.S. at 436; *Mullis v. U.S. Bankr. Ct.*, 828 F.2d 1385, 1390 (9th Cir. 1987).

E. Relator Has No Plain, Speedy, and Adequate Remedy at Law

The direct-appeal remedy Relator would ordinarily invoke has been foreclosed by the very records-access denial being challenged. The State cannot deny Relator the record and then invoke against her the appeal deadlines that ran while she lacked it. *Cf. Peralta v. Heights Med. Ctr., Inc.*, 485 U.S. 80, 84 (1988) (a party deprived of notice cannot be held to a default). Mandamus is the only remedy that can restore Relator's ability to litigate.

VIII. CONCLUSION

Relator asks this Court to issue an alternative writ of mandamus directing Judge Rini to vacate any order conditioning Relator's records access on physical courthouse appearance, and to direct the juvenile clerk to produce the file as ORS 419A.255 requires. Judge Rini should be given the opportunity to show cause why the writ should not issue as a peremptory writ.

Respectfully submitted,

/s/ AshLe' Penn *Without Prejudice* Relator, Appearing Specially 17548 NW Springville Rd., Unit 9 Portland, OR 97229 ashlepenn.ap3@gmail.com

Date: [Date]

VERIFICATION

I, AshLe' Penn, declare under penalty of perjury under the laws of Oregon that the facts stated in this Petition are true and correct to the best of my knowledge.

Executed at [City], Oregon, on _____, 2026.

/s/ AshLe' Penn

CERTIFICATE OF SERVICE

I certify that on [date] I served a true copy of this Petition on:

- The Honorable Judge Rini, Washington County Circuit Court
- The Honorable Rebecca D. Guptill, Presiding Judge, Washington County Circuit Court
- Richard E. Moellmer, Trial Court Administrator
- Kimberly A. Beck, Juvenile Case Processing Clerk
- Courtney Duke-Driesson, County Counsel
- Yazmin Wadia, Assistant Attorney General
- Attorney General, State of Oregon

by electronic mail and by U.S. Mail, certified with return receipt requested.

/s/ AshLe' Penn *Without Prejudice*

AUTHORITIES

- ORS 34.105; ORS 34.110; ORS 34.120; ORS 34.130; ORS 34.240.
- ORS 419A.255.
- *Perry v. Sindermann*, 408 U.S. 593 (1972).
- *Antoine v. Byers & Anderson, Inc.*, 508 U.S. 429 (1993).
- *Mullis v. U.S. Bankruptcy Court*, 828 F.2d 1385 (9th Cir. 1987).
- *Peralta v. Heights Med. Ctr., Inc.*, 485 U.S. 80 (1988).
- *State ex rel. Kristof v. Fagan*, 369 Or. 261 (2022).
- *Li v. State*, 338 Or. 376 (2005).
- *Doney v. Clatsop County*, 142 Or. App. 497 (1996).